

24PSCV04081 24PSCV04081

County: los-angeles

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Case Number: 24PSCV04081 Hearing Date: July 1, 2026 Dept: H

He v. Wang, et al., Case No. 24PSCV04081

ORDER ON MOTION

TO STRIKE

Defendants Michael Wang aka

Xiaojing Wang, Yueh Ho, Eva Wang, Sinola Restaurant, LLC, and Crossgates

Property LLC's Motion to Strike Plaintiff's Notice of Errata in First Amended

Complaint is GRANTED.

Background

Plaintiff Shan He ("Plaintiff") alleges as follows:

Michael

Wang a/k/a Xiaojing Wang ("M. Wang") and Yueh Ho ("Ho") are married and both

trustees and beneficiaries of the H&W Family Trust dated September 25, 2023

("Trust"); Eva Wang ("E. Wang") and Patrick Wang ("P. Wang") are M. Wang's adult

children and Trust beneficiaries. M. Wang is the owner, president, chief executive officer and sole or majority

shareholder of Sinola Restaurant, LLC ("Sinola") and the owner, president,

chief executive officer and sole or majority shareholder of Crossgates Property

LLC ("Crossgates").

Between December 2016 and January 2017, Plaintiff

loaned \$1,000,000.00 to M. Wang, who agreed to assist Plaintiff with the

application of a green card. On/about February 11, 2017, M. Wang executed a

"Payment Guaranty Agreement" ("February 11, 2017 Agreement"), wherein M. Wang

agreed to repay Plaintiff \$1,000,000.00 within 6 months of one of the following

events occurring: (1) Plaintiff obtaining her official green card; (2) Plaintiff withdrawing her application for green card or (3) Plaintiff's green card application being denied "for reasons of the company (Sinola Restaurant LLC) or the U.S. government." The Agreement further provided that M. Wang guaranteed the repayment with his personal property and Sinola's assets and that he would pay interest of \$20,000.00/year to an account designated by Plaintiff by December 31 of each year.

In October 2018, M. Wang paid Plaintiff interest for the years of 2017 and 2018, in the amount of \$40,000.00. Plaintiff subsequently decided to withdraw her green card application and formally notified M. Wang of same on November 9, 2018. Plaintiff and M. Wang reached an agreement on/about November 15, 2018, wherein M. Wang confirmed that the green card application was withdrawn as of November 15, 2018. M. Wang agreed that, per the February 11, 2017 Agreement, he should repay the \$1,000,000.00 within 6 months from November 15, 2018, but claimed to need more time, and so confirmed in writing that he would provide a written refund schedule with a specific timeline and dates.

M. Wang thereafter acknowledged his obligation to repay the monies (i.e., on/about December 18, 2018, May 5, 2019, May 11, 2020, and December 5, 2020). On/about January 20, 2021, Plaintiff discovered that M. Wang had blocked Plaintiff and her parents on all communication platforms, preventing her from locating and contacting him. Plaintiff's ability to act was constrained by COVID-19 restrictions between February 13, 2020-December 13, 2022 and by her mother's severe health issues from 2017-2024. M. Wang and Ho set up Trust to hide their assets from Plaintiff. In or about March 2024, Trust purchased real properties located at 5387 and 5395 Crossgates Avenue in Las Vegas; said properties were then transferred to Crossgates for zero value. Additionally, Sinola made transfers of money or property to M. Wang, Ho, E. Wang, and P. Wang to avoid paying Plaintiff.

On April 9, 2025, Plaintiff filed a First Amended Complaint ("FAC"), asserting causes of action against M. Wang and Ho, individually and as Trustees of Trust, E. Wang, P. Wang, Sinola, Crossgates, and Does 1-25 for: (1) Breach of Written Contract (against M. Wang and Sinola); (2) Fraud (against all Defendants); (3) Breach of Personal Guarantee (against M. Wang and Sinola); (4) Unlawful Distributions (against M. Wang and Sinola); (5) Actual Fraudulent Transfers (against all Defendants); and (6) Constructive Fraudulent Transfers

(against all Defendants).

On August 7, 2025, the Court sustained M. Wang, Ho, E. Wang, Sinola, and Crossgates' demurrer to the second cause of action in Plaintiff's FAC, without leave to amend.

On

March 3, 2026, Plaintiff filed a "Notice of Errata Re: First Amended Complaint."

A Case Management Conference and an Order to Show

Cause Re: Failure to File Proof of Service on FAC are set for November 5, 2025.

A Post-Mediation Status Conference/Case Management

Conference is set for September 17, 2026.

Legal

Standard

"(a) As

used in this section: . . .

(2) The

term 'pleading' means a demurrer, answer, complaint, or cross-complaint.

(b)(1) Any party, within

the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. . ." (Code Civ. Proc., § 435).

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b)

Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436).

Discussion

M.

Wang, Ho, E. Wang, Sinola and Crossgates (hereinafter, "Defendants") move the Court, pursuant to Code of Civil Procedure sections 435 and 436 and California Rules of Court Rule 3.1322, for an order striking Plaintiff's "Notice of Errata Regarding First Amended Complaint" ("Notice of Errata").

A

Notice of Errata may be used to correct typographical or clerical errors/omissions, not to alter substantive allegations in a pleading. (See, e.g., *Flores v. Nature's Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 6 [notice of errata filed as to a missing exhibit]; *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 833-834 [notice of errata filed adding defendant to caption of Third Amended Complaint where there was no mention of him in body of complaint was improper].)

Plaintiff

asserts that the 36-page Notice of Errata filed March 4, 2026 merely seeks to correct a typographical error. The Court disagrees. The Notice of Errata purports to change dates in Paragraphs 31 and 32 of the First Amended Complaint ("FAC") from "December 5, 2020" and "January 20, 2021" to "December 5, 2021" and "January 20, 2024," respectively, rewrites Paragraph 31 to allege that the December 5, 2021 communication was an "unconditional acknowledgment of the debt" that "restart[ed] the applicable statute of limitations period as a matter of law," and adds Exhibit A.

Inasmuch

as the Notice of Errata purports to amend the FAC, the Court construes same as a "pleading" within the context of Code of Civil Procedure sections 435 and 436. The motion is granted. Plaintiff's request for leave to amend the FAC must be made via a separately-noticed motion.